

HUD Tenant Rights and Responsibilities

For Public Housing, Section 8, and HUD-Subsidized Tenants – 2025

If you live in public housing, receive a Housing Choice Voucher (Section 8), or rent from a HUD-subsidized property, you have specific rights and responsibilities under federal regulations.

You have the right to a safe, decent, and sanitary home that meets HUD's Housing Quality Standards (HQS). For Section 8 tenants, the unit must pass an initial inspection before you move in and annual inspections thereafter. If repairs are needed, report them to your landlord or Public Housing Authority (PHA). They must fix HQS violations within 30 days, or 24 hours for life-threatening issues like gas leaks.

Your rent is typically based on your income—usually 30% of your adjusted monthly income. You must report changes in income, household size, or address to your PHA within 10 days. Failure to do so can result in overpayment bills or loss of assistance.

Lease renewals cannot be denied without good cause, such as repeated late payments, criminal activity, or serious lease violations. You have the right to a formal grievance hearing before your PHA makes major decisions affecting your tenancy, including eviction or rent increases.

Privacy is protected. Landlords and PHAs must give at least 24 hours' notice before entering your unit, except in emergencies. Inspections must be scheduled at reasonable times.

You are responsible for paying your portion of the rent on time, keeping your unit clean, and notifying the PHA of any changes in your household. You must also allow annual recertification visits and cooperate with inspections.

If you believe your rights have been violated, contact your PHA's management first. If unresolved, file a complaint with HUD's Office of Public and Indian Housing (PIH) or call HUD's Multifamily Housing Complaint Line at 1-800-955-2232.

Remember: HUD programs are designed to promote stable, affordable housing. Knowing your rights helps you stay housed and hold your housing provider accountable.